

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV-2023-0312

Hearing Date: **January 16, 2026** **Department Eight** **1:30 p.m.**

Plaintiff Xinyao Zhou’s motion for leave to file demurrer and amended motion to strike is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 430.40, subd. (b), 435, subd. (b)(1).) In her moving papers, plaintiff did not provide sufficient legal authority to support her request for leave to file a demurrer and an amended motion to strike. (See *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74; see also Code Civ. Proc., § 1008, subd. (b); Zhou decl., ¶¶ 3-5.) The Court does not consider new legal authority provided for the first time in plaintiff’s reply. (*Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010 [“The salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before”].)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.